

|                                                                                                                 |  |                                      |                                                                                                                                                                      |                                                                       |                       |
|-----------------------------------------------------------------------------------------------------------------|--|--------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------|-----------------------|
| <b>SOLICITATION, OFFER,<br/>AND AWARD</b><br><i>(Construction, Alteration, or Repair)</i>                       |  | 1. SOLICITATION NO.<br>140FC226R0008 | 2. TYPE OF SOLICITATION<br><input type="checkbox"/> SEALED BID (IFB) INVITATION FOR BID<br><input checked="" type="checkbox"/> NEGOTIATED (RFP) REQUEST FOR PROPOSAL | 3. DATE ISSUED<br>05/05/2026                                          | PAGE OF PAGES<br>1 33 |
| <b>IMPORTANT</b> - The "offer" section on the reverse must be fully completed by offeror.                       |  |                                      |                                                                                                                                                                      |                                                                       |                       |
| 4. CONTRACT NO.                                                                                                 |  |                                      | 5. REQUISITION/PURCHASE REQUEST NO.<br>0044032025                                                                                                                    | 6. PROJECT NO.                                                        |                       |
| 7. ISSUED BY<br>FWS Constr A/E 2<br>FWS, Construction A/E Team 2<br>5275 Leesburg Pike<br>Falls Church VA 22041 |  | CODE<br>FC2                          | 8. ADDRESS OFFER TO                                                                                                                                                  |                                                                       |                       |
| 9. FOR INFORMATION CALL        |  | a. NAME<br>Khanhthong Moody          |                                                                                                                                                                      | b. TELEPHONE NO. (Include area code) (NO COLLECT CALLS)<br>4046794022 |                       |

### SOLICITATION

**NOTE:** In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS (*Title, identifying number, date*)  
Statement of Work (SOW), Bid Schedule, and Department of Labor Wage Decision

|                                                                                                                                                                                                                                                                                                                                                                                                                                |                              |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------|
| 11. The contractor shall begin performance within <u>10</u> calendar days and complete it within <u>240</u> calendar days after receiving<br><input type="checkbox"/> award, <input checked="" type="checkbox"/> notice to proceed. This performance period is <input checked="" type="checkbox"/> mandatory <input type="checkbox"/> negotiable. (See _____ ).                                                                |                              |
| 12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS?<br>(If "YES", indicate within how many calendar days after award in Item 12b.)<br><input checked="" type="checkbox"/> YES <input type="checkbox"/> NO                                                                                                                                                                                             | 12b. CALENDAR DAYS<br><br>10 |
| 13. ADDITIONAL SOLICITATION REQUIREMENTS:                                                                                                                                                                                                                                                                                                                                                                                      |                              |
| a. Sealed offers in original and <u>1</u> copies to perform the work required are due at the place specified in Item 8 by <u>1500</u> (hour) local time <u>06/02/2026</u> (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due. |                              |
| b. An offer guarantee <input type="checkbox"/> is, <input checked="" type="checkbox"/> is not required.                                                                                                                                                                                                                                                                                                                        |                              |
| c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.                                                                                                                                                                                                                                                                    |                              |
| d. Offers providing less than <u>60</u> calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.                                                                                                                                                                                                                                                                     |                              |

**OFFER (Must be fully completed by offeror)**

|                                                    |               |                                                                  |  |
|----------------------------------------------------|---------------|------------------------------------------------------------------|--|
| 14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code) |               | 15. TELEPHONE NO. (Include area code)                            |  |
|                                                    |               | 16. REMITTANCE ADDRESS (Include only if different than Item 14.) |  |
|                                                    |               |                                                                  |  |
| CODE                                               | FACILITY CODE |                                                                  |  |

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within \_\_\_\_\_ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS



18. The offeror agrees to furnish any required performance and payment bonds.

**19. ACKNOWLEDGMENT OF AMENDMENTS**

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

| AMENDMENT<br>NUMBER |  |  |  |  |  |  |  |  |  |  |
|---------------------|--|--|--|--|--|--|--|--|--|--|
| DATE.               |  |  |  |  |  |  |  |  |  |  |

|                                                                        |                |                 |
|------------------------------------------------------------------------|----------------|-----------------|
| 20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print) | 20b. SIGNATURE | 20c. OFFER DATE |
|                                                                        |                |                 |

**AWARD (To be completed by Government)**

21. ITEMS ACCEPTED:

Continued...

|                                                                                                                      |                                                                                                                                                                                                                |
|----------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 22. AMOUNT                                                                                                           | 23. ACCOUNTING AND APPROPRIATION DATA                                                                                                                                                                          |
|                                                                                                                      |                                                                                                                                                                                                                |
| 24. SUBMIT INVOICES TO ADDRESS SHOWN IN<br>(4 copies unless otherwise specified)                                     | ITEM                                                                                                                                                                                                           |
|                                                                                                                      |                                                                                                                                                                                                                |
| 26. ADMINISTERED BY<br>F04<br>DIV OF CONT & GRANT SVCS<br>1875 CENTURY BOULEVARD, SUITE 310<br>Atlanta GA 30345-3319 | 25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT<br><input type="checkbox"/> 10 U.S.C. 3204(a) ( ) <input type="checkbox"/> 41 U.S.C. 3304(a) ( )<br>27. PAYMENT WILL BE MADE BY |
|                                                                                                                      |                                                                                                                                                                                                                |

**CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE**

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |           |                                                                                                                                                                                                                                                                                                                                                     |           |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|
| <input type="checkbox"/> 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return <u>1</u> copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract. |           | <input type="checkbox"/> 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary. |           |
| 30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |           | 31a. NAME OF CONTRACTING OFFICER (Type or print)                                                                                                                                                                                                                                                                                                    |           |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |           | Khanhthong Moody                                                                                                                                                                                                                                                                                                                                    |           |
| 30b. SIGNATURE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | 30c. DATE | 31b. UNITED STATES OF AMERICA                                                                                                                                                                                                                                                                                                                       | 31c. DATE |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |           | BY                                                                                                                                                                                                                                                                                                                                                  |           |

|                           |                                           |              |
|---------------------------|-------------------------------------------|--------------|
| <b>CONTINUATION SHEET</b> | REFERENCE NO. OF DOCUMENT BEING CONTINUED | PAGES        |
|                           | 140FC226R0008                             | PAGE 3 OF 33 |

NAME OF OFFEROR OR CONTRACTOR

| ITEM NO.<br>(A) | SUPPLIES/SERVICES<br>(B)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | QUANTITY<br>(C) | UNIT<br>(D) | UNIT PRICE<br>(E) | AMOUNT<br>(F) |
|-----------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|-------------|-------------------|---------------|
|                 | <p>Construct New Water Control Structure at US Fish &amp; Wildlife Service, Harrison Lake National Fish Hatchery in Charles City, Virginia<br/>Magnitude of Construction price range: Between \$100,000 and \$250,000</p> <p>Site Visit Date: Thursday, May 21, 2026<br/>Time: 11:45AM EST<br/>Location: Harrison Lake National Fish Hatchery</p> <p>11110 Kimages Road, Charles City, VA 23030<br/>Delivery: 02/15/2027<br/>Delivery Location Code: 0011280083<br/>FWS HARRISON LAKE NFH<br/>11110 KIMAGES ROAD<br/>CHARLES CITY VA 23030-2844 US</p> |                 |             |                   |               |
| 00010           | <p>Environmental Permitting</p> <p>Period of Performance: 06/15/2026 to 02/15/2027</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                 |             |                   |               |
| 00020           | <p>Construct New Water Control Structure</p> <p>Period of Performance: 06/15/2026 to 02/15/2027</p> <p>Contracting POC: khanhthong_moody@ios.doi.gov<br/>Tech POC: Brian Waz (413) 253-8605<br/>Alt POC: Christina (Tina) McPherson</p>                                                                                                                                                                                                                                                                                                                |                 |             |                   |               |

| Section                                                            | Title                                                             |
|--------------------------------------------------------------------|-------------------------------------------------------------------|
| <b>Part I—The Schedule</b>                                         |                                                                   |
| A                                                                  | Solicitation/Contract Form                                        |
| B                                                                  | Prices                                                            |
| C                                                                  | Description/Specifications/Statement of Work                      |
| D                                                                  | Packaging and Marking                                             |
| E                                                                  | Inspection and Acceptance                                         |
| F                                                                  | Project Delivery                                                  |
| G                                                                  | Contract Administration Data                                      |
| H                                                                  | Special Contract Requirements                                     |
| <b>Part II—Contract Clauses</b>                                    |                                                                   |
| I                                                                  | Contract Clauses                                                  |
| <b>Part III—List of Documents, Exhibits, and Other Attachments</b> |                                                                   |
| J                                                                  | List of Attachments                                               |
| <b>Part IV—Representations and Instructions</b>                    |                                                                   |
| K                                                                  | Representations, Certifications, and other Statements of Offerors |
| L                                                                  | Instructions, Conditions, and Notices to Offerors                 |
| M                                                                  | Evaluation Factors for Award                                      |

**SECTION A – Solicitation/Contract Form**

Standard Form 1442 for Construction

Project Title: Construct New Water Control Structure

Location: US Fish & Wildlife Service, Harrison Lake National Fish Hatchery

City: Charles City, Virginia

County: Charles City

Magnitude of construction price range: Between \$100,000 and \$250,000

**SECTION B – PRICES (QUOTE SCHEDULE)**

Name of Firm: \_\_\_\_\_

Address: \_\_\_\_\_

City: \_\_\_\_\_ State: \_\_\_\_\_ Zip Code: \_\_\_\_\_

Unique Entity ID (12 Digits assigned by SAM.gov) \_\_\_\_\_ CAGE Code: \_\_\_\_\_

Name and Title of Firm's Point of Contact: \_\_\_\_\_

Phone Number: \_\_\_\_\_ Email Address: \_\_\_\_\_

This requirement is for one (1) Firm Fixed Price Construction contract for **ENVIRONMENTAL PERMITTING/CONSTRUCT NEW WATER CONTROL STRUCTURE HARRISON LAKE NATIONAL FISH HATCHERY IN CHARLES CITY, VA**

| Item no.                                                                      | Item Description             | Quantity | Unit of Measure | Unit Price | Total     |
|-------------------------------------------------------------------------------|------------------------------|----------|-----------------|------------|-----------|
| 0001                                                                          | Environmental Permitting     | 1        | LS              | \$         | \$        |
| 0002                                                                          | Mob/Demobilization           | 1        | LS              | \$         | \$        |
| 0003                                                                          | Erosion and Sediment Control | 1        | LS              | \$         | \$        |
| 0004                                                                          | Water Control and Diversion  | 1        | LS              | \$         | \$        |
| 0005                                                                          | Demolition                   | 1        | LS              | \$         | \$        |
| 0006                                                                          | Water Control Structure      | 1        | LS              | \$         | \$        |
| 0007                                                                          | Aluminum Stoplogs            | 1        | LS              | \$         | \$        |
| 0008                                                                          | Site Stabilization           | 1        | LS              | \$         | \$        |
| <b>Amount of Base Bid (Bid Items 1 through 8) (Lump Sum Contractor Price)</b> |                              |          |                 |            | <b>\$</b> |

Estimated Quantity: LS = Lump Sum

I hereby certify that the unit prices and amounts on the above bid items are true and correct. I further certify that the said unit prices and amounts are not disproportionate or unbalanced.

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Date

(End of Section B)

**SECTION C – DESCRIPTION/SPECIFICATIONS/STATEMENT OF WORK**

See Attachment 1: Statement of Work for Environmental Permitting and Construct New Water Control Structure

(End of Section C)

**SECTION D – PACKAGING AND MARKING**

**D.1.0 PAYMENT OF POSTAGE FEES**

All postage and fees related to submitting information forms, reports, etc., to the CO or the COR shall be paid by the contractor.

**D.2.0 MARKING**

All information submitted to the Contracting Officer or the Contracting Officer's Representative shall clearly indicate the Contract Number of the contract for which the information is being submitted.

(End of Section D)



**SECTION E – INSPECTION AND ACCEPTANCE**

The following clauses are incorporated by reference:

|           |                            |          |
|-----------|----------------------------|----------|
| 52.246-12 | Inspection of Construction | AUG 1996 |
|-----------|----------------------------|----------|

(End of Section E)

**SECTION F – PROJECT DELIVERY**

**F.1.0 PERIOD OF PERFORMANCE**

240 Days after Notice to Proceed

**F.2.0 PROGRESS PLAN**

At the prework conference, the Contractor shall provide to the COR a written "work progress plan" that details its proposed work force and schedule to provide for orderly completion of the work within the contract performance time. This work schedule must be acceptable to the Government. At a minimum, the schedule must reflect a work progress rate equal to the available amount of contract performance time.

The following clauses are incorporated by reference:

|           |                    |          |
|-----------|--------------------|----------|
| 52.211-13 | Time Extensions    | SEP 2000 |
| 52.242-14 | Suspension of Work | APR 1984 |

(End of Section F)

**SECTION G – CONTRACT ADMINISTRATION DATA**

**ELECTRONIC INVOICING AND PAYMENT REQUIREMENTS – INVOICE PROCESSING PLATFORM (IPP) (February 2021)**

Payment requests must be submitted electronically through the U.S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions – Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

1. Invoice billed according to contract line items and rates.
2. Certified payrolls and Statement of Compliance in accordance with clause 52.222-8.
3. If the partial payment is billed and the invoice states a lump sum, the invoice shall include an itemized breakdown and narrative progress summary of the work performed during this invoice period.
4. If final payment is billed, the last invoice shall state "FINAL".
5. Contractor's Release of Claims shall be submitted with the final invoice.

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email [IPPCustomerSupport@fiscal.treasury.gov](mailto:IPPCustomerSupport@fiscal.treasury.gov) or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Local Clause)

(End of Section G)

## SECTION H – SPECIAL CONTRACT REQUIREMENTS

### H.1.0 WORK HOURS

Unless otherwise specified in Section C, work hours under this contract shall be limited to the time between one-half hour before sunrise to one-half hour after sunset each day. No work will be performed on Saturday, Sunday, or Federal holidays unless authorized by the COR.

### H.2.0 ENVIRONMENTAL INTERRUPTION OF WORK

H.2.1 Environmental - The Contracting Officer, by issuance of a suspend work order, may direct the Contractor to shut down any work that may be subject to damage due to weather conditions, fire danger, or because it is impracticable to work during the winter season. The Contractor will be given a resume work order which will document the date the work suspension ends. The Contractor will not be entitled to additional monetary compensation for such suspensions regardless of duration. An allowance has been included in the contract time for environmental delays. The count of contract time will therefore continue during all periods of suspension due to normal weather conditions, including fire danger. The Contractor will not be entitled to additional contract time for any suspensions except to the extent that they are due to unusually severe weather conditions.

H.2.2 Endangered Species - The Government may direct the Contractor to discontinue all operations in the event that listed or proposed threatened or endangered plants or animals protected under the Endangered Species Act of 1973, as amended, are discovered to be present in or adjacent to the project area.

### H.3.0 DRAWINGS

H.3.1 Reduced Size Drawings. Drawings appearing in this package may be photographically reduced in size. Accordingly, measurements and dimensions should not be taken or be based on any numerical scales shown. The Contractor may request full-size drawings from the COR.

### H.4.0 PRESERVATION OF HISTORICAL AND ARCHEOLOGICAL DATA

H.4.1 Public Law 93-291, May 24, 1974, provides for the preservation of scientific, prehistorical, and archeological data (including relics and specimens) which might otherwise be lost due to alteration of the terrain as a result of any Federal construction project.

H.4.2 The Contractor agrees that should any contractor employee, in the performance of this contract, discover evidence of possible scientific, prehistorical, historical, or archeological data the contractor will notify the Contracting Officer immediately in writing giving the location and nature of the findings.

H.4.3 Where appropriate by reason of discovery, the Contracting Officer may order delays in the time of performance and/or changes in the work. If such delays and/or changes are ordered, the time of performance and contract price shall be adjusted in accordance with the applicable clauses in Section I of this contract.

H.4.4 The Contractor agrees to insert this requirement in all subcontracts which involve the performance of work on the terrain of the site.

### H.5.0 SUBSTITUTION – PROCESSION OF WORK

Any proposed key personnel, minimum qualifications for incoming or replacement key personnel, subcontractors, processes, procedures or materials included in the quotation are hereby incorporated into the contract. Performance shall be limited to the personnel, qualifications, firms, procedures, and materials that were specifically identified in the RFQ response. The Contractor shall obtain the Contracting Officer's written consent before making any substitutions or changes. All substitutions or replacements shall comply with the terms and conditions of the contract.

#### **H.6.0 ENVIRONMENTAL IMPACT**

All waste materials generated by any work under the contract performed on a Government installation shall at all times be handled, transported, stored, and disposed of by the contractor and by subcontractors in accordance with all applicable Federal, state, and local laws, ordinances, regulations, court orders, and other types of rulings having the effect of the law, including, but not limited to Executive Order 12088, 13 October 1978, Federal Compliance with Pollution Control Standards; the Federal Water Pollution Control Act, as amended (33 U.S.C. 1251 ET SEQ); the Clean Air Act as amended (42 U.S.C. Sec 7401 ET SEQ); the Endangered Species Act, as amended (16 U.S.C. Sec 1531, ET SEQ); the Toxic Substances Control Act, as amended (15 U.S.C. Sec 2601, ET SEQ); the National Historic Preservation Act, as amended (16 U.S.C. Sec 470, ET SEQ); the Solid Waste Disposal Act, as amended (42 U.S.C. 6901 ET SEQ); and the Archaeological and Historic Preservation Act, as amended (16 U.S.C. Sec 469, ET SEQ). Should the United States Government be held liable for any neglect or improper actions by the contractor or any subcontractor regarding removal or disposal of any hazardous waste, the contractor shall reimburse the Government for all such liability.

#### **H.7.0 HAZARDOUS MATERIALS**

Any material suspected of being hazardous that is unexpectedly encountered during performance of a project shall immediately be brought to the attention of the Contracting Officer, at which time a determination will be made as to whether hazardous material testing shall be performed. If the Contracting Officer directs the contractor to perform tests, and/or the material is found to be of a hazardous nature requiring additional protective measures, a contract modification may be required, subject to equitable adjustment under the terms of the contract. The contractor is advised that friable and/or non-friable asbestos-containing material may be encountered in project areas. Friable asbestos-containing material is any material that contains more than one percent asbestos by weight, and that hand pressure can crumble, pulverize or reduce to powder when dry. Non-friable asbestos containing materials are materials in which asbestos fibers are bound by a matrix material, saturation, impregnation or coating.

Non-friable asbestos-containing materials do not normally release airborne asbestos fiber during routine handling and end-use. However, excessive fiber concentrations may be produced during uncontrolled abrading, sanding, drilling, cutting, machining, removal, demolition, or other similar activities. 29 CFR 1910.1001 shall be referenced in the event asbestos-containing materials are encountered. Friable asbestos-containing materials are not authorized for use in new construction or maintenance projects.

#### **H.8.0 GREEN PROCUREMENT REQUIREMENTS**

In the performance of this construction contract, the Contractor shall make maximum use of products identified on the mandatory environmental purchasing list at the following links, as applicable:

- U.S. EPA Comprehensive Procurement Guidelines published at [www.epa.gov/cpg/products.htm](http://www.epa.gov/cpg/products.htm).

- USDA Biobased product listings published at [www.biopreferred.gov](http://www.biopreferred.gov).
- Energy Star® product listings published at [www.energystar.gov/products](http://www.energystar.gov/products).
- FEMP Low Standby Power product listings published at <http://energy.gov/eere/femp/covered-product-categories>

Contractor shall comply with all reporting requirements of the following clauses/provisions when applicable (See Clause and Provision sections):

- 52.223-1 Biobased Product Certification
- 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts.
- 52.223-4 Recovered Material Certification
- 52.223-9 Estimate of Percentage of Recovered Material Content for EPA Designated Items

#### H.9.0 UNAUTHORIZED PERSONNEL

The contractor shall inform all personnel working under their jurisdiction (including subcontractor and visiting supplier personnel) that access to restricted areas outside of the immediate work area; excluding direct haul and access routes, contracting and Civil Engineering offices and points of supply and storage; is prohibited. Circulation of said personnel will be limited to official business only. Persons in violation of the above will be apprehended and appropriately disciplined.

#### H.10.0 CONSTRUCTION WAGE RATES APPLICABLE TO TRUCK DRIVERS

29 CFR 5.2(j) limits coverage of construction contractor or subcontractor employees performing as truck drivers under the Construction Wage Rate Requirements (FAR 52.222-6) to only their time spent directly upon the "site of the work" or when hauling between the site of the work and a facility which is dedicated to and located in the proximity of the actual construction location. Other transportation of materials or supplies to or from the site of work by employees of the construction contractor or subcontractor is not "construction" at the site of work and accordingly is not subject to the Davis-Bacon Act.

#### H.11.0 FIRE DANGER SEASON

If the COR allows the Contractor to continue work during periods of declared fire danger or season, the Contractor shall comply with all applicable state laws relating to fire prevention and with all special conditions of work as directed by the COR.

(End of Section H)

## SECTION I – CONTRACT CLAUSES

The following clauses are incorporated by reference:

| Clause    | Title                                                                                                                        | Date                                  |
|-----------|------------------------------------------------------------------------------------------------------------------------------|---------------------------------------|
| 52.203-7  | Anti-Kickback Procedures                                                                                                     | JUN 2020                              |
| 52.203-12 | Limitation On Payments to Influence Certain Federal Transactions                                                             | JUN 2020                              |
| 52.203-19 | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements                                           | JAN 2017                              |
| 52.204-9  | Personal Identity Verification of Contractor Personnel                                                                       | JAN 2011                              |
| 52.204-10 | Reporting Executive Compensation and First-Tier Subcontract Awards                                                           | JUN 2020                              |
| 52.204-13 | System for Award Management Maintenance                                                                                      | OCT 2018                              |
| 52.204-19 | Incorporation By Reference of Representations and Certifications                                                             | DEC 2014                              |
| 52.209-10 | Prohibition on Contracting With Inverted Domestic Corporations                                                               | NOV 2015                              |
| 52.213-4  | Terms and Conditions – Simplified Acquisitions (Other Than Commercial Products and Commercial Services) (DEVIATION FEB 2025) | OCT 2025                              |
| 52.219-6  | Notice of Total Small Business Set-Aside                                                                                     | NOV 2020                              |
| 52.219-28 | Post-Award Small Business Program Representation                                                                             | JAN 2025                              |
| 52.222-1  | Notice to the Government of Labor Disputes                                                                                   | FEB 1997                              |
| 52.222-3  | Convict Labor                                                                                                                | JUN 2003                              |
| 52.222-6  | Construction Wage Rate Requirements                                                                                          | AUG 2018                              |
| 52.222-7  | Withholding of Funds                                                                                                         | MAY 2014                              |
| 52.222-8  | Payrolls and Basic Records                                                                                                   | JUL 2021                              |
| 52.222-10 | Compliance with Copeland Act Requirements                                                                                    | FEB 1988                              |
| 52.222-11 | Subcontracts (Labor Standards)                                                                                               | MAY 2014                              |
| 52.222-12 | Contract Termination – Debarment                                                                                             | MAY 2014                              |
| 52.222-13 | Compliance with Construction Wage Rate Requirements and Related Regulations                                                  | MAY 2014                              |
| 52.222-14 | Disputes Concerning Labor Standards                                                                                          | FEB 1988                              |
| 52.222-15 | Certification of Eligibility                                                                                                 | MAY 2014                              |
| 52.222-30 | Construction Wage Rate Requirements – Price Adjustment (None or Separately Specified Pricing Method)                         | AUG 2018                              |
| 52.222-32 | Construction Wage Rate Requirements - - Price Adjustment (Actual Method)                                                     | AUG 2018                              |
| 52.222-35 | Equal Opportunity for Veterans                                                                                               | JUN 2020                              |
| 52.222-36 | Equal Opportunity For Workers with Disabilities                                                                              | JUN 2020                              |
| 52.222-50 | Combating Trafficking in Persons                                                                                             | OCT 2025                              |
| 52.222-54 | Employee Eligibility Verification                                                                                            | JAN 2025                              |
| 52.222-55 | Minimum Wages for Contractor Workers Under Executive Order 14026                                                             | JAN 2022                              |
| 52.222-62 | Paid Sick Leave Under Executive Order 13706                                                                                  | JAN 2022                              |
| 52.222-90 | Addressing DEI Discrimination by Federal Contractors                                                                         | (APR 2026)<br>(DEVIATION<br>APR 2026) |

|           |                                                                                       |          |
|-----------|---------------------------------------------------------------------------------------|----------|
| 52.223-2  | Reporting of Biobased Products Under Service and Construction Contracts               | MAY 2024 |
| 52.223-3  | Hazardous Material Identification and Material Safety Data Alternate I                | JUL 1995 |
| 52.223-5  | Pollution Prevention and Right-to-Know Information                                    | MAY 2024 |
| 52.223-23 | Sustainable Products and Services (DEVIATION FEB 2025)                                | MAY 2024 |
| 52.225-9  | Buy American—Construction Materials                                                   | OCT 2022 |
| 52.226-8  | Encouraging Contractor Policies to Ban Text Messaging While Driving                   | MAY 2024 |
| 52.227-1  | Authorization and Consent                                                             | JUN 2020 |
| 52.227-2  | Notice and Assistance Regarding Patent and Copyright Infringement                     | JUN 2020 |
| 52.227-4  | Patent Indemnity-Construction Contracts                                               | DEC 2007 |
| 52.228-11 | Individual Surety – Pledges of Assets                                                 | FEB 2021 |
| 52.228-12 | Prospective Subcontractor Requests for Bonds                                          | DEC 2022 |
| 52.228-13 | Alternative Payment Protections                                                       | JUL 2000 |
| 52.228-14 | Irrevocable Letter of Credit                                                          | NOV 2014 |
| 52.228-15 | Performance and Payment Bonds-Construction                                            | JUN 2020 |
| 52.232-5  | Payments Under Fixed-Price Construction Contracts                                     | MAY 2014 |
| 52.232-23 | Assignment of Claims                                                                  | MAY 2014 |
| 52.232-24 | Prohibition of Assignment of Claims                                                   | MAY 2014 |
| 52.232-27 | Prompt Payment for Construction Contracts                                             | JAN 2017 |
| 52.232-33 | Payment by Electronic Funds Transfer—System for Award Management                      | OCT 2018 |
| 52.232-39 | Clause for unenforceability of unauthorized obligations                               | JUN 2013 |
| 52.232-40 | Providing Accelerated Payments to Small Business Subcontractors                       | MAR 2023 |
| 52.233-1  | Disputes                                                                              | MAY 2014 |
| 52.233-1  | Disputes-Alternate 1                                                                  | DEC 1991 |
| 52.233-3  | Protest After Award                                                                   | AUG 1996 |
| 52.233-4  | Applicable Law for Breach of Contract Claim                                           | OCT 2004 |
| 52.236-2  | Differing Site Conditions                                                             | APR 1984 |
| 52.236-3  | Site Investigation and Conditions Affecting the Work                                  | APR 1984 |
| 52.236-5  | Material and Workmanship                                                              | APR 1984 |
| 52.236-6  | Superintendence By the Contractor                                                     | APR 1984 |
| 52.236-7  | PERMITS AND RESPONSIBILITIES                                                          | NOV 1991 |
| 52.236-8  | Other Contracts                                                                       | APR 1984 |
| 52.236-9  | Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements | APR 1984 |
| 52.236-10 | Operations and Storage Areas                                                          | APR 1984 |
| 52.236-11 | Use and Possession Prior to Completion                                                | APR 1984 |
| 52.236-12 | Cleaning Up                                                                           | APR 1984 |
| 52.236-13 | Accident Prevention                                                                   | NOV 1991 |
| 52.236-14 | Availability and Use of Utility Services                                              | APR 1984 |
| 52.236-16 | Quantity Surveys                                                                      | APR 1984 |
| 52.236-17 | Layout of Work                                                                        | APR 1984 |
| 52.236-21 | Specifications and Drawings for Construction                                          | FEB 1997 |
| 52.236-21 | Specifications and Drawings for Construction – Alternate I                            | APR 1984 |
| 52.236-21 | Specifications and Drawings for Construction – Alternate II                           | APR 1984 |



|           |                                                                                      |                   |
|-----------|--------------------------------------------------------------------------------------|-------------------|
| 52.240.91 | Security Prohibitions and Exclusions                                                 | DEVIATION<br>DATE |
| 52.243-5  | Changes and Changed Conditions                                                       | APR 1984          |
| 52.244-6  | Subcontracts for Commercial Products and Commercial Services<br>(DEVIATION FEB 2025) | Oct 2025          |
| 52.246-21 | Warranty of Construction                                                             | MAR 1994          |
| 52.249-10 | Default (Fixed-Price Construction)                                                   | APR 1984          |

The following clauses are provided in full text:

**52.225-9 – BUY AMERICAN–CONSTRUCTION MATERIALS (OCT 2022)**

(a) *Definitions.* As used in this clause—

*Commercially available off-the-shelf (COTS) item—*

(1) Means any item of supply (including construction material) that is—

(i) A commercial product (as defined in paragraph (1) of the definition of “commercial product” at Federal Acquisition Regulation (FAR) [2.101](#));

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

"Construction material" means an article, material, or supply brought to the construction site by the Contractor or a subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

*Cost of components means—*

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

*Critical component* means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR [25.105](#).

*Critical item* means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR [25.105](#).

*Domestic construction material* means—

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both—

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if—

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

*Fastener* means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

*Foreign construction material* means a construction material other than a domestic construction material.

*Foreign iron and steel* means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the

initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

*Predominantly of iron or steel or a combination of both* means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

*Steel* means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

"United States" means the 50 States, the District of Columbia, and outlying areas.

(b) Domestic preference.

(1) This clause implements [41 U.S.C. chapter 83](#), Buy American, by providing a preference for domestic construction material. In accordance with [41 U.S.C. 1907](#), the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction materials, excluding COTS fasteners. (See FAR [12.505\(a\)\(2\)](#)). The Contractor shall use only domestic construction material in performing this contract, except as provided in paragraphs (b)(2) and (b)(3) of this clause.

(2) This requirement does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows: *none*

(3) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(2) of this clause if the Government determines that-

(i) The cost of domestic construction material would be unreasonable.

(A) *For domestic construction material that is not a critical item or does not contain critical components.*

*(1) The cost of a particular domestic construction material subject to the requirements of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;*

*(2) For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that is manufactured in the United States and does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that exceeds 55 percent domestic content as a domestic offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(A)(1) of this clause.*

*(3)The procedures in paragraph (b)(3)(i)(A)(2) of this clause will no longer apply as of January 1, 2030.*

*(B) For domestic construction material that is a critical item or contains critical components.*

*(1)The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR [25.105](#).*

*(2)For construction material that does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest foreign offer of construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer, and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(B)(1) of this clause.*

*(3)The procedures in paragraph (b)(3)(i)(B)(2) of this clause will no longer apply as of January 1, 2030.*

(ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute.

(1)

(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(3) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(3)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) *Data*. To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison

| Construction material description | Unit of measure | Quantity | Price (dollars) * |
|-----------------------------------|-----------------|----------|-------------------|
| <i>Item 1</i>                     |                 |          |                   |
| Foreign construction material     |                 |          |                   |
| Domestic construction material    |                 |          |                   |
| <i>Item 2</i>                     |                 |          |                   |
| Foreign construction material     |                 |          |                   |
| Domestic construction material    |                 |          |                   |

[\* *Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)*].

[*List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.*]

[*Include other applicable supporting information.*]

(End of clause)

**52.228-15 – PERFORMANCE AND PAYMENT BONDS-CONSTRUCTION (JUN 2020)**

(a) *Definitions*. As used in this clause-

*Original contract price* means the award price of the contract; or, for requirements contracts, the price payable for the estimated total quantity; or, for indefinite-quantity contracts, the price payable for the specified minimum

quantity. Original contract price does not include the price of any options, except those options exercised at the time of contract award.

(b) *Amount of required bonds.* Unless the resulting contract price is valued at or below the threshold specified in Federal Acquisition Regulation [28.102-1\(a\)](#) on the date of award of this contract, the successful offeror shall furnish performance and payment bonds to the Contracting Officer as follows:

(1) *Performance bonds ( [Standard Form 25](#) ).* The penal amount of performance bonds at the time of contract award shall be 100 percent of the original contract price.

(2) *Payment Bonds ( [Standard Form 25A](#) ).* The penal amount of payment bonds at the time of contract award shall be 100 percent of the original contract price.

(3) Additional bond protection.

(i) The Government may require additional performance and payment bond protection if the contract price is increased. The increase in protection generally will equal 100 percent of the increase in contract price.

(ii) The Government may secure the additional protection by directing the Contractor to increase the penal amount of the existing bond or to obtain an additional bond.

(c) *Furnishing executed bonds.* The Contractor shall furnish all executed bonds, including any necessary reinsurance agreements, to the Contracting Officer, within the time period specified in the Bid Guarantee provision of the solicitation, or otherwise specified by the Contracting Officer, but in any event, before starting work.

(d) *Surety or other security for bonds.* The bonds shall be in the form of firm commitment, supported by corporate sureties whose names appear on the list contained in Treasury Department Circular 570, individual sureties, or by other acceptable security such as postal money order, certified check, cashier's check, irrevocable letter of credit, or, in accordance with Treasury Department regulations, certain bonds or notes of the United States. Treasury Circular 570 is published in the *Federal Register* or may be obtained from the:

U.S. Department of the Treasury,  
Financial Management,  
Service Surety Bond Branch,  
3700 East West Highway,  
Room 6 F01,  
Hyattsville, MD 20782.

Or via the internet at <http://www.fms.treas.gov/c570/>.

(e) *Notice of subcontractor waiver of protection ( [40 U.S.C. 3133\(c\)](#) ).* Any waiver of the right to sue on the payment bond is void unless it is in writing, signed by the person whose right is waived, and executed after such person has first furnished labor or material for use in the performance of the contract.

(End of clause)

**52.247-69 REPORTING REQUIREMENT FOR U.S.-FLAG AIR CARRIERS REGARDING TRAINING TO PREVENT HUMAN TRAFFICKING (JAN 2025)**

a) *Definitions.* As used in this clause—

*Human trafficking* means “Severe forms of trafficking in persons” or “Sex trafficking.”

*Severe forms of trafficking in persons* means—

(1) Sex trafficking in which a commercial sex act is induced by force, fraud, or coercion, or in which the person induced to perform such act has not attained 18 years of age; or

(2) The recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.

*Sex trafficking* means the recruitment, harboring, transportation, provision, or obtaining of a person for the purpose of a commercial sex act.

(b) *Annual reporting requirement.*

(1) In accordance with [49 U.S.C. 40118\(g\)](#), the Contractor shall provide the annual report described in paragraph (b)(2) of this clause by October 30th, via email, to the following agencies:

(i) General Services Administration: [TraffickingPreventionReport@gsa.gov](mailto:TraffickingPreventionReport@gsa.gov);

(ii) U.S. Department of Transportation: [trafficking@dot.gov](mailto:trafficking@dot.gov);

(iii) Department of Labor: [AirCarrier-HTreports@dol.gov](mailto:AirCarrier-HTreports@dol.gov);

(iv) Transportation Security Administration: [ics-cchtfams@tsa.dhs.gov](mailto:ics-cchtfams@tsa.dhs.gov);

(v) U.S. Customs and Border Protection: [CLP@cbp.dhs.gov](mailto:CLP@cbp.dhs.gov); and

(vi) DHS Center for Countering Human Trafficking: [Info@CCHT.dhs.gov](mailto:Info@CCHT.dhs.gov).

(2) The annual report shall include information from the preceding Government fiscal year (October 1 through September 30) regarding—

(i) The number of personnel trained in the detection and reporting of potential human trafficking, including the training required under [49 U.S.C. 44734\(a\)\(4\)](#);

(ii) The number of notifications of potential human trafficking victims received from staff or other passengers; and

(iii)

(A) Whether the Contractor notified the Global Human Trafficking Hotline, another comparable hotline, or law enforcement at the relevant airport of the potential human trafficking victim for each such notification of potential human trafficking; and

(B) If the Contractor made a notification, the date the notification was made and the method of notification (*e.g.*, text to Hotline, call to law enforcement).

(c) *Training*. In accordance with [49 U.S.C. 44734](#) and [44738](#), personnel trained in the detection and reporting of potential human trafficking should include the following:

- (1) Flight attendants;
- (2) Ticket counter agents;
- (3) Gate agents; and
- (4) Other air carrier workers whose jobs require regular interaction with passengers.

(End of clause)

#### **52.252-4 ALTERATIONS IN CONTRACT (APR 1984)**

Portions of this contract are altered as follows:

#### **1452.201-70 AUTHORITIES AND DELEGATIONS (SEP 2011)**

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.

(b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.

(c) The COR is not authorized to perform, formally or informally, any of the following actions:

- (1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;
- (2) Waive or agree to modification of the delivery schedule;
- (3) Make any final decision on any contract matter subject to the Disputes Clause;
- (4) Terminate, for any reason, the Contractor's right to proceed;
- (5) Obligate in any way, the payment of money by the Government.

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.



(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of clause)

**1452.203-70 Restrictions on Endorsements.** Restriction on Endorsements - Department of the interior (JUL 1996)

The Contractor shall not refer to contracts awarded by the Department of the Interior in commercial advertising, as defined in FAR 31.205-1, in a manner which states or implies that the product or service provided is approved or endorsed by the Government, or is considered by the Government to be superior to other products or services. This restriction is intended to avoid the appearance of preference by the Government toward any product or service. The Contractor may request the Contracting Officer to make a determination as to the propriety of promotional material.

(End of clause)

**1452.204-70 RELEASE OF CLAIMS (JUL 1996)**

After completion of work and prior to final payment, the Contractor shall furnish the Contracting Officer with a release of claims against the United States relating to this contract. The Release of Claims form (DI-137) shall be used for this purpose. The form provides for exception of specified claims from operation of the release.

(End of clause)

**1452.215-70 Examination of Records by the Department of the Interior.** Examination of Records by the Department of the Interior (APR 1984)

For purposes of the Examination of Records by the Comptroller General clause of this contract (FAR 52.215-1), the Secretary of the Interior, the Inspector General, and their duly authorized representative(s) from the Department of the Interior shall have the same access and examination rights as the Comptroller General of the United States.

(End of clause)

(End of Section I)

**SECTION J – LIST OF ATTACHMENTS**

**Attachments**

1. Statement of Work (SOW) for Environmental Permitting and Construct New Water Control Structure
2. Department of Labor General Decision Number: VA20260001 01/30/2026
3. BID Schedule

**(End of Section J)**

## SECTION K – REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS

The following clauses are incorporated by reference:

|           |                                                                                                                                |          |
|-----------|--------------------------------------------------------------------------------------------------------------------------------|----------|
| 52.203-11 | Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions                                      | SEP 2024 |
| 52.203-18 | Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation | JAN 2017 |
| 52.209-2  | Prohibition on Contracting with Inverted Domestic Corporations-Representation                                                  | NOV 2015 |
| 52.223-4  | Recovered Material Certification                                                                                               | MAY 2008 |

NOTE for SAM Representations: System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations including 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation; paragraphs (d) and (t) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services;. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

The following provisions are provided in full text:

**52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (FEB 2016)** As prescribed in 9.104-7(d), insert the following provision:

(a)As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that—

(1)Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2)Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b)The Offeror represents that—

(1)It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2)It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

**(End of Section K)**

## SECTION L – INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFERORS

L.1.0 GENERAL. This Request for Proposal (RFP) is set aside for small business concerns. An award notice will be posted on the Government Point of Entry website located at [sam.gov](http://sam.gov) upon award. The award notice will include the awardee's name and address and total award amount.

L.1.1 CHECKLIST. In order for a proposal to be considered responsive, the proposer shall submit the information listed in the checklist below. Failure to submit all of the required information prior to the closing of the solicitation (see Block 8 of the SF 1442) will result in the quote not being considered for award.

Quote Submission Checklist: Respondents Initials of Items Included in Submission

1. Completed SF 1442 (Blocks 14 thru 20C). 1. \_\_\_\_\_
2. Signed Amendment(s)- SF30s (if Applicable) 2. \_\_\_\_\_
3. Pricing for Items on the Quote Schedule (Section B) 3. \_\_\_\_\_
4. Representation and Certifications per FAR Provision 52.204-8 6. \_\_\_\_\_
  - i. *Provision does not need to be filled out if information is already entered into the System for Award Management (SAM.gov). If information is already entered into SAM, please state so.*

L.1.2 Electronic Response. The quotation MUST be electronically submitted via e-mail to [khanhthong\\_moody@ios.doi.gov](mailto:khanhthong_moody@ios.doi.gov)

L.1.3 Requests for Information. Questions regarding this solicitation must be submitted in writing to **Khanhthong Moody** via e-mail to [khanhthong\\_moody@ios.doi.gov](mailto:khanhthong_moody@ios.doi.gov) by Tuesday, May 26, 2026 before 1500 EST.

L.2.0 QUOTATION INSTRUCTIONS.

L.2.1 FORMAT AND CONTENT

L.2.1.1 Submit the completed Standard Form 1442 and all acknowledged amendments, if any.

L.2.1.2 Evaluation Factor, Price. The Respondent shall submit a completed Quote Schedule (Section B). The Respondent shall enter unit prices and extended totals for each item listed in the Quote Schedule. The line-item price shall include all necessary supervision, management, labor, transportation, equipment, materials, any other direct incidental costs, overhead and profit.

L.2.1.3 EMPTY

L.2.1.4 The Respondent shall complete and submit all applicable Representations, Certifications and Other Statements of Offerors. In accordance with FAR 4.1201, representations and certifications shall be submitted to the System for Award Management ([www.sam.gov](http://www.sam.gov)) and updated at least annually to ensure they are kept current, accurate, and complete.

L.2.1.5 Executed Bid Guarantee in accordance with provision 52.228-1, if required.

L.2.1.6 If the Respondent identifies an "equal" item in lieu of a brand name item specified, the Offeror shall furnish the required information pursuant to provision 52.211-6 Brand Name or Equal with the quotation,

in order to be considered for award. The Government is not responsible for locating or obtaining any information not identified with the quotation.

\*\*The following provision is incorporated by reference:

| Provision | Title                                                                   | Date           |
|-----------|-------------------------------------------------------------------------|----------------|
| 52.204-7  | System for Award Management                                             | NOV 2024       |
| 52.214-35 | Submission of Offers in U.S. Currency                                   | APR 1991       |
| 52.222-5  | Construction Wage Rate Requirements – Secondary Site of the Work        | MAY 2014       |
| 52.228-1  | Bid Guarantee                                                           | SEP 1996       |
| 52.240-90 | Security Prohibitions and Exclusions Representations and Certifications | DEVIATION DATE |

\*\*The following provisions and clauses are provided in full text:

**52.222-5 – CONSTRUCTION WAGE RATE REQUIREMENTS—SECONDARY SITE OF THE WORK (MAY 2014)**

(a)

(1) The offeror shall notify the Government if the offeror intends to perform work at any secondary site of the work, as defined in paragraph (a)(1)(ii) of the FAR clause at 52.222-6, Construction Wage Rate Requirements, of this solicitation.

(2) If the offeror is unsure if a planned work site satisfies the criteria for a secondary site of the work, the offeror shall request a determination from the Contracting Officer.

(b)

(1) If the wage determination provided by the Government for work at the primary site of the work is not applicable to the secondary site of the work, the offeror shall request a wage determination from the Contracting Officer.

(2) The due date for receipt of offers will not be extended as a result of an offeror's request for a wage determination for a secondary site of the work.

(End of Provision)

**52.225-10 – NOTICE OF BUY AMERICAN REQUIREMENT—CONSTRUCTION MATERIALS (MAY 2014)**

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "construction material," "domestic construction material," and "foreign construction material," as used in this provision, are defined in the clause of this solicitation entitled "Buy American--Construction Materials" (Federal Acquisition Regulation (FAR) clause 52.225-9).

(b) *Requests for determinations of inapplicability.* An offeror requesting a determination regarding the inapplicability of the Buy American statute should submit the request to the Contracting Officer in time to allow a determination before submission of offers. The offeror shall include the information and applicable supporting data required by paragraphs (c) and (d) of the clause at FAR 52.225-9 in the request. If an offeror has not requested a determination regarding the inapplicability of the Buy American statute before submitting its offer, or has not received a response to a previous request, the offeror shall include the information and supporting data in the offer.

*(c) Evaluation of offers.*

(1) The Government will evaluate an offer requesting exception to the requirements of the Buy American statute, based on claimed unreasonable cost of domestic construction material, by adding to the offered price the appropriate percentage of the cost of such foreign construction material, as specified in paragraph (b)(3)(i) of the clause at FAR 52.225-9.

(2) If evaluation results in a tie between an offeror that requested the substitution of foreign construction material based on unreasonable cost and an offeror that did not request an exception, the Contracting Officer will award to the offeror that did not request an exception based on unreasonable cost.

*(d) Alternate offers.*

(1) When an offer includes foreign construction material not listed by the Government in this solicitation in paragraph (b)(2) of the clause at FAR 52.225-9, the offeror also may submit an alternate offer based on use of equivalent domestic construction material.

(2) If an alternate offer is submitted, the offeror shall submit a separate Standard Form 1442 for the alternate offer, and a separate price comparison table prepared in accordance with paragraphs (c) and (d) of the clause at FAR 52.225-9 for the offer that is based on the use of any foreign construction material for which the Government has not yet determined an exception applies.

(3) If the Government determines that a particular exception requested in accordance with paragraph (c) of the clause at FAR 52.225-9 does not apply, the Government will evaluate only those offers based on use of the equivalent domestic construction material, and the offeror shall be required to furnish such domestic construction material. An offer based on use of the foreign construction material for which an exception was requested—

(i) Will be rejected as nonresponsive if this acquisition is conducted by sealed bidding; or

(ii) May be accepted if revised during negotiations.

(End of provision)

**52.252-1 – SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Federal Acquisition Regulation: <https://www.acquisition.gov/far/>

Department of the Interior Acquisition Regulation (CFR, Title 48, Chapter 14): [http://www.ecfr.gov/cgi-bin/text-idx?SID=46fff09635987db3af784ea3c7efc2e0&mc=true&tpl=/ecfrbrowse/Title48/48cfrv5\\_02.tpl#1400](http://www.ecfr.gov/cgi-bin/text-idx?SID=46fff09635987db3af784ea3c7efc2e0&mc=true&tpl=/ecfrbrowse/Title48/48cfrv5_02.tpl#1400)

(End of provision)

**1452.215-71 Use and Disclosure of Proposal Information - Department of the Interior.** Use and Disclosure of Proposal Information - Department of the Interior (APR 1984)

(a) Definitions. For the purposes of this provision and the Freedom of Information Act (5 U.S.C. 552), the following terms shall have the meaning set forth below:

(1) "Trade Secret" means an unpatented, secret, commercially valuable plan, appliance, formula, or process, which is used for making, preparing, compounding, treating or processing articles or materials which are trade commodities.

(2) "Confidential commercial or financial information" means any business information (other than trade secrets) which is exempt from the mandatory disclosure requirement of the Freedom of Information Act, 5 U.S.C. 552. Exemptions from mandatory disclosure which may be applicable to business information contained in proposals include exemption (4), which covers "commercial and financial information obtained from a person and privileged or confidential," and exemption (9), which covers "geological and geophysical information, including maps, concerning wells."

(b) If the offeror, or its subcontractor(s), believes that the proposal contains trade secrets or confidential commercial or financial information exempt from disclosure under the Freedom of Information Act, (5 U.S.C. 552), the cover page of each copy of the proposal shall be marked with the following legend:

"The information specifically identified on pages \_\_\_\_\_ of this proposal constitutes trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act. The offeror requests that this information not be disclosed to the public, except as may be required by law. The offeror also requests that this information not be used in whole or part by the government for any purpose other than to evaluate the proposal, except that if a contract is awarded to the offeror as a result of or in connection with the submission of the proposal, the Government shall have the right to use the information to the extent provided in the contract."

(c) The offeror shall also specifically identify trade secret information and confidential commercial and financial information on the pages of the proposal on which it appears and shall mark each such page with the following legend:

"This page contains trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act and which is subject to the legend contained on the cover page of this proposal."

(d) Information in a proposal identified by an offeror as trade secret information or confidential commercial and financial information shall be used by the Government only for the purpose of evaluating the proposal, except that (i) if a contract is awarded to the offeror as a result of or in connection with submission of the proposal, the Government shall have the right to use the information as provided in the contract, and (ii) if the same information is obtained from another source without restriction it may be used without restriction.

(e) If a request under the Freedom of Information Act seeks access to information in a proposal identified as trade secret information or confidential commercial and financial information, full consideration will be given to

the offeror's view that the information constitutes trade secrets or confidential commercial or financial information. The offeror will also be promptly notified of the request and given an opportunity to provide additional evidence and argument in support of its position, unless administratively unfeasible to do so. If it is determined that information claimed by the offeror to be trade secret information or confidential commercial or financial information is not exempt from disclosure under the Freedom of Information Act, the offeror will be notified of this determination prior to disclosure of the information.

(f) The Government assumes no liability for the disclosure or use of information contained in a proposal if not marked in accordance with paragraphs (b) and (c) of this provision. If a request under the Freedom of Information Act is made for information in a proposal not marked in accordance with paragraphs (b) and (c) of this provision, the offeror concerned shall be promptly notified of the request and given an opportunity to provide its position to the Government. However, failure of an offeror to mark information contained in a proposal as trade secret information or confidential commercial or financial information will be treated by the Government as evidence that the information is not exempt from disclosure under the Freedom of Information Act, absent a showing that the failure to mark was due to unusual or extenuating circumstances, such as a showing that the offeror had intended to mark, but that markings were omitted from the offeror's proposal due to clerical error.

(End of provision)

**(End of Section L)**



**SECTION M – EVALUATION FACTORS FOR AWARD**

M.1.0 BASIS OF AWARD.

This solicitation is conducted under simplified acquisition procedures and will result in the award of (1) Firm Fixed-Price Construction Purchase Order in accordance with the provisions herein this section.

The Government intends to award, without discussions, to the responsible respondent submitting quotation with the **lowest evaluated price determined fair and reasonable.**

(End of Section M)